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東一

第二科

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擬移亞東司 九、六、

可 樹人 一、廿九、

中華民國卅六年壹月廿八日收到

于 核 一、廿八 孔

事由

擬辦

似可照辦 廷黻 一、卅

請駐英代表團及駐英使館並屬注意 台僑在英實

批示

駐英吉利國大使館代電

民國卅六年一月十一日發 丙字第五九九〇號

部次長鈞鑒、關於台僑恢復國籍、向英交涉承認案、十二月十四日代電暨附節略計達、茲准英外部復文、對於承認台僑國籍、英政府仍持前議、其立場似完全根據於法理、但在事

外交部收文 東36字第717號

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267

實上經兩次交涉、英方已表示讓步、允予台僑以友邦人民之待遇、則台僑在英屬各地、不復受敵僑待遇之限制、現英方同意、凡屬台僑案件、英有關機關、應與我駐外使領接洽、至於我方之主張、台僑應依照院令恢復國籍、英方雖未接受、我亦未曾放棄、在此階段、如我台僑在英屬各地所受待遇、在事實上與華僑並無兩歧、我駐外使領行使保護台僑職權、亦無窒礙、或可待實際發生困難時再行交涉、特抄同英外部來函復請鑒核、並懇 示遵、鄭天錫

COPY.

FOREIGN OFFICE, S.W.1.

No. F 17758/2027/23.

31st December, 1946.

Your Excellency,

I have the honour to refer to Your Excellency's memorandum No. F.O. 46/243 of the 10th December about the status of Formosans.

2. In the view of His Majesty's Government, the conferment of Chinese nationality on Formosans en bloc can be properly based and recognised only on the basis of Chinese sovereignty over the island and His Majesty's Government regret that they are unable to accept as adequate for the purpose any unilateral act of the Chinese Government such as the Executive Yuan Order promulgated in January 1946.

3. Pending the recognition of such sovereignty, His Majesty's Government have, as already stated, instructed the British authorities concerned to treat Formosans in general as friendly aliens. These instructions however, I would point out, admit of exceptions being made in individual cases, and they should not be read as a direction to treat all Formosans as Chinese nationals, pending a formal transfer to China of sovereignty over the island. At the same time His Majesty's Government recognise that Formosa is now under Chinese administration and they agree therefore that the British authorities concerned should as a general rule accept representations made by the Chinese diplomatic and consular officers on behalf of Formosans

/As

His Excellency
Dr. Cheng Tien-Hsi,
etc., etc., etc.,
49, Portland Place,
W.1.

260

4. As regards the transfer of sovereignty, the reference to "some other formal diplomatic instrument" in my note of the 26th September was meant merely to indicate that it would legally be possible to effect a transfer of sovereignty to China by an instrument which was not necessarily part of the peace treaty, such instrument being executed by all those states which would be parties to the peace treaty and with the same formalities. It was not intended to suggest that as a matter of policy His Majesty's Government would consider executing such an instrument. They would in fact prefer that the legal transfer of sovereignty should be effected in the Peace Treaty with Japan, more especially since, as far as His Majesty's Government are aware, The Chinese Authorities are not subject to any special disabilities in their administration of Formosa by the fact that a formal transfer of sovereignty has not yet taken place.

I have the honour to be, with the highest consideration,

Your Excellency's obedient Servant,
(For the Secretary of State)

(Signed) G.V. Kitson.